

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JOHN HOFMEYER,

Petitioner

VS.

GABRIELA HOFMEYER,

Respondent

) Case Number: FDI-18-790640

) Hearing Date: June 23, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER TEMPORARY STAY OF PROPERTY SALE/SORT-SALE ACTIVITY;
REQUEST FOR ORDER: DISCLOSURE OF HOMEOWNERS ISURANCE SETTLEMENT
AGREEMENT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner John Hofmeyer (Husband) and Respondent Gabriela Hofmeyer (Wife). The parties married on 11/11/2006. At the prior 4/2/2026 hearing date, the Court made a finding that the parties' date of separation is 8/13/2018, for a marriage of 11 years and 9 months. The parties have one adult child, Lyra (DOB: 9/23/2007, age 18) and one minor child, Bryce (DOB: 4/19/2010, age 16). Husband is self-represented. Wife is represented by attorney Allyson Overton.
- 2) The currently pending Requests for Order concern a condominium located at 245 5th Street, Unit 201, San Francisco, California (hereafter the "5th Street Condominium") that was purchased during the marriage. In 2017, Husband states the parties paid off and closed a Nationwide HELOC. Husband states that after separation, Wife reactivated the previously closed Nationwide HELOC and incurred more than \$90,000 in post-separation debt, secured by the property.

1 Husband states that this post-separation encumbrance is the “primary basis for foreclosure
2 activity and title disputes affecting the property (see Husband’s declaration filed 3/2/2026). In
3 March and April 2019, the condo suffered water damage. It appears undisputed that repairs to the
4 condo have not been completed. Husband states that in December 2024, Wife settled an insurance
5 litigation against Safeco and received a payout of more than \$370,000 without Husband’s input or
6 knowledge. Husband states he did not learn of the settlement payout until April 2025. At the prior
7 8/21/2025 hearing, the Court granted Husband’s request for exclusive use and possession of the
8 condominium. Wife states Husband is currently living in the 5th Street Condominium “mortgage-
9 free while failing to pay HOA fees and other obligations” and that the condominium is
10 encumbered by three separate loans held by two different lenders with an aggregate loan balance
11 that exceeds the current fair market value of the property (see Wife’s declaration filed 2/2/2026).
12 Husband states that a lis pendens has been recorded against the property by one of the debt
13 holders which clouds title. Husband states that in February 2026 he obtained a written estimate
14 from OT Builders in the amount of \$62,800 to repair the property and restore it to a habitable and
15 rentable condition (see Husband’s declaration filed 3/2/2026).

16 3) Prior Relevant Orders

- 17 a. On 1/9/2024, a Stipulation and Order for Short Sale of Community Property Real Estate
18 was filed wherein the parties agreed to immediately execute all documents necessary to
19 apply for a short sale of 5th Street Condominium, provided that a short sale is “approved
20 by the lenders” and provided the parties’ loss mitigation attorney did not object to the
21 Stipulation by 12/4/2023.
- 22 b. At the prior 8/21/2025 hearing (per the Findings and Order After Hearing filed
23 8/26/2025), the Court deferred to Presiding Judge Rochelle East regarding Husband’s
24 request to consolidate the family law case with pending related Case No. CGC-25-
25 623783; declined to “issue financial orders” related to the regarding the 5th Street
26 Condominium (noting “resolution of the civil action must first occur”); and granted
27 Husband’s request for exclusive use and possession of the condo.
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- 1 c. At the prior 2/26/2026 hearing, the Court denied Husband's request to set aside and
2 vacate the Stipulation and Order for Short Sale of Community Property Real Estate filed
3 1/9/2024.

4 4) Related Court Cases

- 5 a. An action was previously brought by Wife against Safeco in the Superior Court for the
6 County of Alameda, Case No. RG20061553. This Court does not have access to the
7 pleadings filed in the Alameda County case. Husband attached to his Reply Declaration
8 filed 6/12/2026 a copy of the Complaint and Demand for Jury Trial filed on 5/18/2020 in
9 Alameda County Case No. RG20061553. The complaint names the following causes of
10 action: first cause of action (breach of the implied covenant of good faith and fair dealing
11 against Safeco and Liberty Mutual Insurance Company); second cause of action
12 (negligence against Restoration Management and Defendants 6-10); third cause of action
13 (aiding and abetting against Restoration Management and Defendants 6-10); fourth cause
14 of action (declaratory relief against John Hofmeyer and Defendants 11-15). Regarding
15 the fourth cause of action, the complaint states: "An actual controversy has arisen and
16 now exists between the parties concerning the possession of and use of insurance
17 proceeds that are the subject of this lawsuit, as well as the right to other damages alleged
18 to have been caused by Liberty Mutual. John Hofmeyer's request for an emergency order
19 as it relates to the insurance benefits is itself sufficient and independent grounds to assert
20 the existence of the alleged dispute." The case was settled and dismissed in 2024.
- 21 b. There is an action currently pending in the Superior Court for the County of San
22 Francisco, Case No. CGC-25-623783, brought by Wife's former attorney (Kerley
23 Schaffer LLP) in the Safeco action. The named defendants are U.S. Bank, Tehama Lofts
24 Condominium Homeowner's Association, Nationwide Bank, Professional Insurance
25 Evaluations, John Hofmeyer (Husband), and Gabriela Hofmeyer (Wife). This is an
26 interpleader action involving \$67,031.11 in insurance proceeds that Wife's former law
27 firm, Kerley Schaffer LLP, recovered in the prior insurance lawsuit. Kerley Schaffer LLP
28 deposited the funds with the court and has asked the court to require all competing
29 claimants to litigate among themselves who has rights to the funds. Husband filed a

1 cross-complaint, in which he seeks to trace how the insurance proceeds were handled and
2 distributed, determine whether the funds are separate or community property, identify
3 who received payments, and obtain equitable remedies such as a constructive trust,
4 restitution, and an accounting. There is a future Case Management Conference set in this
5 matter for 9/2/2026.

- 6 c. There is an action currently pending in the Superior Court for the County of San
7 Francisco, Case No. CGC-25-624078 brought by U.S. Bank. The named defendants are
8 Wilmington Savings Fund Society; Clear Recon Corp; Gabriela Hofmeyer (Wife); John
9 Hofmeyer (Husband); and “all persons unknown claiming any legal or equitable title,
10 estate, lien or interest in the subject property described in the complaint adverse to
11 Plaintiff’s title or any cloud on Plaintiff’s title thereto.” Per the Complaint filed 4/4/2025,
12 U.S. Bank is seeking quiet title, cancellation of instruments, equitable subrogation,
13 injunction, and declaratory relief. Regarding quiet title, U.S. Bank asks the Court to
14 “remov[e] encumbrances against the Subject Property that Plaintiff is informed and
15 believes, and thereon alleges, have been paid in full but erroneously not reconveyed.”
16 There is currently a trial scheduled in this case for October 2026.

17 5) Future Hearing Dates

- 18 a. There is currently a status conference set in this case for 7/13/2026.
19 b. There is currently a hearing scheduled for 8/7/2026 in Dept. 405A on Husband’s Request
20 for Order filed 4/30/2026 seeking to compel further responses to his Request for
21 Production of Documents, Set Four and Special Interrogatories, Set Three.

22 6) Husband’s Request for Order filed 3/2/202026

- 23 a. On 3/2/22026, Husband filed a Request for Order asking the Court to make the following
24 orders:
25 i. short-sale activity is stayed through the conclusion of the related civil lien/title
26 proceedings set for October 12, 2026 (and any continued date).
27 ii. During the stay, no party may open escrow, accept an offer, sign a purchase
28 contract, close escrow, or record any deed or instrument transferring any interest
29 in the Property.

1 iii. During the stay, the January 2024 short-sale stipulation shall not be enforced to
2 compel short-sale performance, including the 48-business-hour signing
3 demand/ex-parte signature procedure.

4 iv. The Court's August 26, 2025 exclusive use and possession order remains in
5 effect; no lockbox, no keys surrendered, and Petitioner shall not be required to
6 vacate or surrender possession for sale-related purposes.

7 v. Set a status conference in late October 2026 (first available after 10/12/26) to
8 review civil outcomes, title/insurability, interpleader funds, and dissolution trial
9 setting; if both related civil matters (CGC-25-624078 and CGC-25-623783)
10 resolve earlier, the parties may stipulate to advance the status conference date,
11 subject to Court availability.

12 b. On 4/15/2026, Wife filed a Responsive Declaration asking the Court to deny Husband's
13 requested relief and Wife further requests sanctions in the amount of \$5,000 under
14 Family Code section 271.

15 c. On 4/20/2026, Husband filed a Reply Declaration.

16 d. On 5/20/2026, Husband filed a Supplemental Reply Declaration asking for the following
17 updated relief:

18 i. Apply and reaffirm its August 26, 2025 ruling that the Court will not issue
19 property-related financial determinations until the related civil matters are
20 resolved, including determinations that depend on unresolved encumbrance and
21 value inputs; and

22 ii. Order a brief stay of short-sale activity through June 12, 2026; and

23 iii. Direct that no later than June 12, 2026, Husband shall file and serve a properly
24 noticed request seeking an orderly alternative disposition in which, once the quiet
25 title matter materially resolves the enforceable lien/encumbrance issues and title
26 can be cleared, the Court may award the property to Husband with Husband
27 assuming responsibility for the Property's associated encumbered debt as
28 appropriate.
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iv. If Husband does not file and serve the noticed request by June 12, 2026, the stay automatically expires on June 12, 2026 absent further order of the Court.

e. On 5/20/2026, Husband filed Evidentiary Objections to Wife's Responsive Declaration and Supporting Papers.

f. On 5/22/2026, Wife filed a Supplemental Declaration Opposing Delay of Home Sale. Wife states that Husband interfered with the prior court-appointed public adjuster's work to repair the home and prepare it for sale and has also interfered with the real estate agent's efforts to sell the home. Wife states that her lawsuit against Safeco arose from Husband's collusion with the insurance company to interfere with the repairs being made. Wife requests \$10,000 in Family Code section 271 attorney's fees sanctions.

g. On 5/26/2026, Husband filed a Rebuttal Declaration. Husband that he "cooperated in short-sale efforts until he learned title was clouded and understood the implications of proceeding with irreversible short-sale steps under a clouded title." Husband asks the Court to give little or no weight to Wife's allegations to the extent they rely on motive / intent accusations, hearsay, or collateral issues, and focus on whether short-sale activity should be paused briefly pending developments in the related civil quiet title matter.

h. On 5/26/2026, Husband filed Evidentiary Objections to Wife's 5/22/2026 Supplemental Declaration and Exhibits.

i. On 5/26/2026, Husband filed a Limited Update and Supplemental Declaration. Husband states, "On Friday afternoon, May 22, 2026, I was served with a filing in the quiet title case (CGC-25-624078) by Defendant Wilmington Savings Fund Society, FSB representing that "a settlement agreement is now pending... whereby the disputed lien will be released." Husband states this indicates the quiet title action is in active settlement posture and may resolve sooner than the October date referenced in my moving declaration. Husband states, "Accordingly, given the very recent posture in the quiet title case, I am narrowing my request to only a brief pause of short-sale activity through June 12, 2026."

- 1 j. On the Court's own motion, the Court continued the 5/28/2026 hearing on Husband's
2 3/2/2026 Request for Order to 6/23/2026, to join the hearing on Husband's Request for
3 Order filed 5/4/2026.

4 7) Husband's Request for Order filed 5/4/2026

- 5 a. On 5/4/2026, Husband filed a Request for Order asking the Court to order Wife to
6 produce:
- 7 i. the final Safeco settlement agreement and release;
 - 8 ii. the request for dismissal, dismissal, and related proof of service documents;
 - 9 iii. any settlement statement or disbursement ledger;
 - 10 iv. copies of settlement checks, endorsements, and deposit records; and
 - 11 v. a verified accounting of all proceeds received, deposited, transferred, withheld, or
12 disbursed in connection with the Safeco claim and related litigation.
- 13 b. On 6/5/2026, Husband filed a Supplemental Declaration stating, "Since filing my moving
14 declaration, U.S. Bank has opened a claim/investigation regarding the \$140,684.79
15 Safeco multi-payee settlement check that names U.S. Bank as a payee..."
- 16 c. On 6/5/2026, Husband filed Updated Requested Orders. Husband asks the Court to make
17 the following orders:
- 18 i. Wife shall produce to Husband the documents and information requested in
19 Husband's Request for Order no later than July 9, 2026, and Wife shall execute
20 written consent waiving confidentiality to permit full production of those
21 materials.
 - 22 ii. No later than June 30, 2026, Wife shall execute written consent authorizing
23 Safeco/Liberty Mutual to release to Husband and to U.S. Bank National
24 Association (and/or its authorized agents handling U.S. Bank Claim No.
25 1015374) the settlement agreement and release and the complete claim file(s) for
26 Safeco Policy No. OA3471026 concerning water damage to the Property,
27 including all claim handling, payment, settlement, and disbursement records,
28 notwithstanding any confidentiality provision.
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1 iii. If Wife does not timely comply with 1. and/or 2., this Court's order shall
2 constitute the required court order authorizing Safeco/Liberty Mutual to release
3 the materials described in #2 notwithstanding any confidentiality provision, and
4 Wife shall not rely on any confidentiality provision to excuse noncompliance
5 with #1.

6 d. On 6/9/2026, Wife filed a Responsive Declaration asking the Court to deny Husband's
7 request entirely. Wife states, "To the extent the SafeCo documents relate to the property
8 damage claim, Petitioner has had equal access to those documents as a party with an
9 interest in that claim and has had the ability to obtain information directly from the
10 insurance carrier, the civil action, or other available resources. There is no basis to
11 require me to produce documents that are equally available to Petitioner. To the extent
12 Petitioner's request seeks information concerning my separate personal injury claim or
13 settlement, those matters are confidential, are not relevant to the issues before this Court,
14 and are beyond the scope of these proceedings. Disclosure of insurance agreements,
15 settlement communications, settlement terms or related documents would not assist the
16 court in determining any accounting or characterization of proceeds."

17 e. On 6/12/2026, Husband filed a Reply Declaration. Husband states the Safeco lawsuit was
18 an insurance bad-faith case and not a personal injury suit. Husband states the confidential
19 settlement generated at least two January 2025 payments, including a \$140,684.79 multi-
20 payee check naming Husband, Wife, and U.S. Bank. Husband states he was not notified
21 of the settlement or dismissal and that disclosure is necessary to determine the nature of
22 the settlement proceeds, whether they were properly negotiated and distributed, and
23 whether they should have been applied to repair the property and other community
24 obligations. Husband states that Wife's assertion that the documents are equally available
25 to Husband is incorrect. Husband states Safeco has expressly stated that it will not
26 provide the release absent a court order or Wife's written consent. Wife has not provided
27 that consent. Husband reiterates his original requests and adds the following requests:

28 i. Wife to execute written consent authorizing Safeco/Liberty Mutual to release the
29 withheld records directly to me and to U.S. Bank;

1 ii. In the alternative, Wife to file and serve an itemized identification of any specific
2 material claimed to be unrelated to the water-damage claim, property-damage
3 proceeds, payment records, lender rights, or named-payee issues for the Court's
4 in-camera review before any redaction or withholding is permitted.

5 **B. Findings and Order**

- 6 1) It appears that Husband is currently requesting that the Court stay any short-sale activity through
7 6/12/2026. As 6/12/2026 has passed, the Court finds that Husband's request for a stay of
8 enforcement of the Stipulation and Order filed 1/9/2024 pending 6/12/2026, as well as his
9 evidentiary objections related to Wife's opposition to this request, is moot.
- 10 2) Husband's request that the Court reaffirm currently effective orders is denied. The Court does not
11 find it necessary to make such an additional order.
- 12 3) Wife's request for Family Code section 271 attorney's fees sanctions is denied.
- 13 4) Husband's request for the Court to set a status conference in late October 2026 is denied without
14 prejudice. As the trial has not yet occurred in the related civil action, this request is premature.
- 15 5) The Court does not find that Alameda County Case No. RG20061553 involved personal injury
16 claims by Wife. The Court finds that the insurance claim settlement proceeds directly involve a
17 community asset as well as a community property homeowner's insurance policy. Husband's
18 request for the Court to order Wife to produce the following documents as they relate to Alameda
19 County Case No. RG20061553 is hereby granted. No later than 7/15/2026, Wife shall produce to
20 Husband: the final Safeco settlement agreement and release; the request for dismissal, dismissal,
21 and related proof of service documents; any settlement statement or disbursement ledger; copies
22 of settlement checks, endorsements, and deposit records; and a verified accounting of all proceeds
23 received, deposited, transferred, withheld, or disbursed in connection with the Safeco claim and
24 related litigation.
- 25 6) No later than 7/15/2026, Wife shall sign and provide to Husband the release providing written
26 consent authorizing Safeco/Liberty Mutual to release to Husband the settlement agreement and
27 release and the complete claim file(s) for Safeco Policy No. OA3471026 concerning water
28 damage to the property, including all claim handling, payment, settlement, and disbursement
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1 records, notwithstanding any confidentiality provision. If Wife does not sign the release by
2 7/15/2026, Husband may obtain these documents directly from Safeco and / or Liberty Mutual.

3 7) Husband's request that Wife sign a release for documents to be released to U.S. Bank National
4 Association (and/or its authorized agents handling U.S. Bank Claim No. 1015374) is denied as
5 U.S. Bank National Association is not a party to this case.

6 8) The Court will prepare the Findings and Order After Hearing.
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